



CHAPTER cvi.

An Act to authorise the Corporation of Torquay to construct additional waterworks and for other purposes. A.D. 1903.

[21st July 1903.]

WHEREAS the borough of Torquay (in this Act called “the borough”) is under the management and local government of the mayor aldermen and burgesses of the borough (in this Act called “the Corporation”) who acting by the council are the council of the urban district which comprises the borough (in this Act called “the council”):

And whereas the Corporation in their then capacity of a local board were by the Torquay Waterworks Act 1856 (hereinafter referred to as “the Act of 1856”) empowered to acquire and improve certain waterworks and to supply the borough and neighbourhood with water:

And whereas by the Tormoham Provisional Order 1860 confirmed by the Local Government Supplemental Act 1860 the Tormoham Provisional Order 1865 confirmed by the Local Government Supplemental Act 1865 the Tormoham Provisional Order 1866 confirmed by the Local Government Supplemental Act 1866 the Torquay Provisional Order 1879 confirmed by the Local Government Board’s Provisional Orders (Ashton-under-Lyne &c.) Act 1879 the Torquay Provisional Order 1880 confirmed by the Local Government Board’s Provisional Orders Confirmation (Alnwick Union &c.) Act 1880 and the Torquay Provisional Order 1883 confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 3) Act 1883 (in this Act collectively referred to as “the recited Orders”) further powers in respect to their water undertaking were conferred on the Corporation:

And whereas by the Torquay Corporation Act 1897 (in this Act called “the Act of 1897”) the Corporation as therein provided

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were authorised to improve their existing water undertaking and subject to the provisions contained in the Act of 1853 and the recited Orders and the Act of 1897 the Corporation now supply water within limits which comprise the borough and also the towns of Newton Bushel and Newton Abbot and the parishes of Highweek Wolborough and St. Mary Church and Cockington without the borough (which limits are in this Act called "the limits of supply") :

And whereas the supply of water for the existing works of the Corporation is inadequate to meet the growing demands of the inhabitants within the limits of supply and it is expedient that the Corporation be empowered to make and maintain the additional works by this Act authorised :

And whereas it is expedient that such other provisions be made in relation to the supply of water and also in relation to recreation grounds within the borough and other the further powers in this Act contained should be conferred on the Corporation :

And whereas estimates have been prepared by the Corporation of the moneys required for the waterworks and other the purposes of this Act and the same amount to the sum of twenty-four thousand five hundred pounds and the several works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas it is expedient that the Corporation be empowered to borrow moneys for the purposes of this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the fourteenth day of November one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in the *Torquay Times* and *South Devon Advertiser* a local newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) passed a resolution in favour of the promotion of a Bill for this Act and further resolved that the expense thereof should be charged on the water revenue district fund and general district rate or such other funds or rates under the control of the council as should be determined by the council :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the sixth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill for this Act in Parliament: A.D. 1903.

And whereas the owners and ratepayers of the borough by resolution in manner provided by the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

And whereas plans and sections showing the lines and levels of the works by this Act authorised and also showing the lands authorised by this Act to be purchased compulsorily together with a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Devon and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Torquay Corporation Water Act* 1903. Short title.

2. This Act is divided into parts as follows:—

Act divided
into parts.

Part I.—Preliminary.

Part II.—Water.

Part III.—Recreation Grounds.

Part IV.—Finance.

Part V.—Miscellaneous.

3. The following Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely:— Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The Waterworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received

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by the undertakers when the waterworks are carried on for their benefit and so much of section 70 as refers to the payment of rates by quarterly instalments and except section 83 relating to accounts) but that Act shall be read and have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted from section 44:

The Waterworks Clauses Act 1863 :

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof.

Interpreta-
tion.

4. The several words and expressions to which by the Acts wholly or partially incorporated with this Act or in the Public Health Acts meanings are assigned shall in this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

"The Corporation" means the mayor aldermen and burgesses of the borough of Torquay ;

"The borough" means the borough of Torquay ;

"The council" means the town council of the borough ;

"The town clerk" "the surveyor" "the treasurer" "the borough fund" "the borough rate" "the district fund" and "the general district rate" mean respectively the town clerk surveyor treasurer borough fund borough rate district fund and general district rate of the borough ;

"The Act of 1856" means the Torquay Waterworks Act 1856 ;

"The Act of 1897" means the Torquay Corporation Water Act 1897 ;

"The recited Orders" means the Provisional Orders mentioned in the third paragraph of the preamble to this Act ;

"Daily penalty" means a penalty for each day on which the offence is continued after conviction therefor ;

"Statutory security" means any security in which trustees are for the time being by or under Act of Parliament passed or to be passed authorised to invest trust money (except any security of the council) and any mortgage bond stock debenture stock or other security authorised by or under any Act of Parliament passed or to be passed of any

county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 except as before excepted and except annuities rentcharges and securities payable to bearer; A.D. 1903.

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the precept of the Corporation;

“Limits of supply” means the limits within which the Corporation under the Act of 1856 and the recited Orders are authorised to supply water;

“New recreation ground” means the lands described in the agreement set out in the First Schedule to and confirmed by this Act:

For the purposes of this Act in the provisions of the Railways Clauses Consolidation Act 1845 by this Act applied—

“The company” means the council;

“The railway” means any of the works respectively by this Act authorised;

“The centre of the railway” means with respect to any of the works by this Act authorised the centre line of that work.

PART II.

WATER.

5. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and upon the lands delineated upon the deposited plans and described in the deposited

Power to make water-works.

A.D. 1903. book of reference and according to the levels shown on the deposited sections the waterworks following (that is to say) :—

Work No. 1 A reservoir (to be called “the Trenchford Reservoir”) to be situate in the parishes of Christow Bovey Tracey and Hennock in the county of Devon and to be formed by means of an embankment or retaining wall one hundred and ninety-seven yards or thereabouts in length across the Beadon or Trenchford Brook and Kennick Stream at a point thereon eleven yards or thereabouts measured in a north-westerly direction from Pool Mill Bridge and on and across the lands numbered 5 17 20 27 28 29 30 31 parish of Hennock and 4 6 7 parish of Bovey Tracey on the $\frac{1}{25000}$ Ordnance map of the parishes of Bovey Tracey and Hennock published in the year one thousand eight hundred and eighty-nine which reservoir will extend from the said embankment or retaining wall to a point on the said Beadon or Trenchford Brook eight hundred and fifty yards measured in a north-westerly direction from Pool Mill Bridge and from the said embankment or retaining wall to a point on the said Kennick Stream five hundred and thirty-three yards measured in a north-easterly direction :

Work No. 2 A road diversion (No. 1) commencing in the parish of Bovey Tracey in the existing road leading from Hennock to Moretonhampstead at a point two hundred and seventy yards measured in a south-easterly direction from Pool Mill Bridge and terminating in the parish of Christow in the existing road leading from Hennock to Bridford at a point two hundred yards measured in a north-westerly direction from Lower Mardon Farm building which said road diversion will be wholly situate in the said parishes of Hennock Bovey Tracey and Christow :

Work No. 3 A road diversion (No. 2) commencing in the parishes of Hennock and Bovey Tracey in the existing road over Pool Mill Bridge and leading from Hennock to Christow at a point sixty yards measured in a southerly direction from Pool Mill Bridge and terminating in the parish of Hennock in the road leading from Hennock to Christow at a point forty-six yards measured in an easterly direction from Pool Mill Bridge which said road diversion will be wholly situate in the said parishes of Hennock and Bovey Tracey.

6. The Corporation may in connexion with the waterworks by this Act authorised construct and maintain all proper embankments dams sluices bye-washes waste-weirs outfalls discharge pipes bridges roads roadway approaches wells pumps engines tanks basins gauges filters and filter-beds pipes adits shafts tunnels aqueducts culverts cuts catchwaters channels conduits stream diversions drains mains pipes standpipes junctions valves telegraphs telephones apparatus houses buildings and conveniences connected with or ancillary to the said works or any of them or necessary for inspecting maintaining enlarging repairing cleansing conducting managing working and using the same Provided that any telegraphs or telephones constructed and maintained under the authority of this Act shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

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Subsidiary works.

7. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoir three feet upwards and ten feet downwards and in the case of all other works to any extent not exceeding five feet upwards and five feet downwards Provided as follows (that is to say) :—

Limits of deviation.

The Corporation shall not construct any embankment or wall of the Trenchford Reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition :

Except for the purposes of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

8. During the execution of the several works which the Corporation are by this Act authorised to make and maintain for the supply of water and subject to the provisions of this Act the Corporation may from time to time break open cross alter raise lower stop up divert or interfere with any highways streets or roads bridges railways tramroads tramways canals towing-paths rivers sewers drains culverts streams watercourses footpaths ways passages and other places and any gas and water mains pipes and

Power to alter roads &c.

A.D. 1903. works telegraphic and telephonic pipes lines wires and apparatus in any of the lands shown on the deposited plans and described in the deposited book of reference and with any other works laid or placed in under along or over any such highways streets roads bridges footpaths ways passages and places which the Corporation may from time to time for the purposes of such works and water supply find it expedient so to interfere with The Corporation shall in each case do as little damage as possible and shall make full compensation to all persons injuriously affected by the exercise of the powers of this section Provided that the Corporation shall not alter divert or interfere with any telegraphic or telephonic pipes lines wires or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to
take lands
and waters.

9. Subject to the provisions and for the purposes of this Act the Corporation may enter upon take and use all or any of the lands delineated upon the deposited plans and described in the deposited book of reference and they may collect impound take use divert and appropriate for the purposes of their water undertaking all waters of the Trenchford or Beadon Brook and Kennick Stream at and upon the embankment of the Trenchford Reservoir and all the tributaries streams of the said brook and stream above the said embankment and all such streams and waters as will or may be intercepted by this Act authorised or as may be found in on or under any of the lands for the time being belonging to the Corporation.

Temporary
discharge of
water into
streams.

10.—(1) For the purposes of executing any necessary work of repair or of cleansing or of examining any aqueduct or conduit by this Act authorised the Corporation may cause the water in any such aqueduct or conduit to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall make full compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration under and pursuant to the provisions of the Arbitration Act 1889.

Corporation
may acquire
easements
only in cer-
tain lands.

11. The Corporation may in lieu of acquiring any lands for the purposes of the works by this Act authorised acquire such temporary or permanent easements and rights in such lands as they may require for the purpose of constructing placing laying

inspecting maintaining cleansing repairing enlarging conducting or managing the same and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts inclusive of those with regard to arbitration and the summoning of a jury shall apply to such easements and rights as fully as if the same were lands within the meaning of such Acts Provided always that except as to land forming part of a street nothing herein contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this proviso Provided also that as regards any lands taken or used by the Corporation for the purpose of laying any conduit or pipe underground the Corporation shall not (unless they purchase such lands and not merely easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the work have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

12. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of five years from the passing of this Act.

Period for compulsory purchase of lands.

13. If the works by this Act authorised are not completed within ten years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as are then completed But nothing herein shall restrict the Corporation from extending enlarging altering or removing any of their engines machinery weirs tanks pipes and other works from time to time as occasion requires for supplying water in manner authorised by this Act or any former Act relating to the Corporation.

Period for completion of works.

14. The Corporation may for the purposes of their water undertaking acquire by agreement either in fee simple or for any term or terms of years in addition to lands which they are already authorised to hold or which they may take under the powers of this Act any lands not exceeding in the whole fifty acres or any easement right or privilege therein thereunder or thereon (not being an

Power to acquire additional lands.

A.D. 1903. — easement right or privilege of water in which persons other than the grantors have an interest) but the Corporation shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Persons under disability may grant easements &c.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in that behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to sell lands &c.

16. Subject to the provisions of the Lands Clauses Acts the Corporation may at any time if they think fit sell lease or otherwise dispose of to any person in such way and manner and on such terms and conditions as the Corporation deem proper any lands mines or minerals for the time being held by or belonging to the Corporation as part of their water undertaking and not required for any of the purposes of or in connexion with their water undertaking.

The Corporation shall apply any moneys so received as aforesaid in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Local Government Board.

Reservation of water rights on sale.

17. The Corporation on selling any lands acquired for or in connexion with their water undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Power to hold lands for protection of works.

18. The Corporation may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of preventing the fouling of the water of any stream

flowing into any of their waterworks or for the protection of their waterworks against nuisances encroachment or injury and so long as such lands shall be so held they shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts.

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19. For the purposes of this Act in the construction of the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof which are incorporated with this Act the expression "the company" shall mean the Corporation and the expression "the railway" shall include all the works authorised by this Act and expressions referring to the centre of the railway shall mean in the case of the tramroad conduits or catchwaters authorised by this Act the centre lines thereof respectively and in the case of the reservoir and the works immediately connected therewith authorised by this Act the boundaries thereof respectively and for the purposes of section 32 of that Act the prescribed limits shall be fifty yards in respect of the said reservoir and ten yards in respect of other works.

Temporary use of lands.

20. So soon as the road and footpath diversions by this Act authorised shall respectively have been completed to the satisfaction of two justices and opened to the public the Corporation may stop up the several roads and footpaths in substitution for which the respective road and footpath diversions are made between the points of commencement and termination of the said road and footpath diversions and thereupon the rights of way in and over the same shall be and the same are hereby extinguished and the site and soil of the portions of the roads and footpaths stopped up and discontinued shall if and so far as the Corporation are the owners of the lands on both sides thereof be vested in them.

Stopping up of roads and footpaths and vesting site in Corporation.

21. The road diversions by this Act authorised shall be maintained in repair by and at the cost of the Corporation for twelve months after completion of which completion a certificate of two justices shall be conclusive evidence (which certificate two justices shall give on such completion being proved to their satisfaction) and from and after the expiration of the said period of twelve months such road diversions shall be maintained in repair by and at the expense of the authority or person by whom or at whose expense the road in substitution for which the road diversion is made was repairable.

Maintenance of diverted road

22. The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons

Restriction on taking houses of labouring class.

A.D. 1903. belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce the penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Power to agree as to drainage of lands.

23. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the reservoir and works by this Act authorised or with the council of the district in which such lands are situate with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the Corporation flowing to or upon or from such lands directly or indirectly into such reservoirs and works.

Power to lay down sewers and drains in drainage area.

24. The Corporation may in and upon lands acquired by them within the drainage area or in and upon other lands within the drainage area with the consent of the owners lessees or occupiers of such lands construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul water arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take or impound from being polluted fouled contaminated or discoloured and the Corporation may for the purposes aforesaid carry any such drain

sewer or watercourse under across or along any street or road in or adjoining any such lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

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25.—(1) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph pipes wires conductors or apparatus which the Corporation may and which they are hereby authorised to erect or lay down for the purposes of their water undertaking.

Application of Waterworks Clauses Act 1847 to conduits discharge pipes and to telephones.

(2) Provided that no telephonic or telegraphic apparatus made and maintained under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

26. The waterworks by this Act authorised shall for all purposes be deemed to form part of the water undertaking of the Corporation.

Waterworks to form part of water undertaking of Corporation.

27. The water supplied by the Corporation need not at any time be delivered at a pressure greater than that to be afforded by gravitation from the reservoir from which the supply is given Provided that in the case of fire within the district of the urban district council of Newton Abbot the mains from the service reservoir at Newton Abbot shall be connected immediately by the Corporation or their officers with the trunk main from the reservoirs on the watershed.

Limits of pressure

28. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Water rate payable by owner for small houses.

29. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Corporation not bound to supply several houses by one pipe.

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Supply to
houses partly
used for
trade &c.

30. The Corporation shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required. Provided that where water is supplied by measure to any such building the price to be charged shall not exceed one shilling and fourpence per thousand gallons.

Notice of
discontinu-
ance.

31. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation.

Byelaws for
preventing
waste &c. of
water.

32. For preventing waste undue consumption or misuse or contamination of the water of the Corporation the following provisions shall have effect (that is to say):—

- (1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption or misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of the pipes meters cocks ferrules valves soil-pans urinals waterclosets baths tanks cisterns and other apparatus fittings means contrivances receptacles or appliances whatsoever to be used and forbid any arrangements and the use of the several things before mentioned or any or either of them which may allow or tend to waste or undue consumption misuse erroneous measurement or contamination :
- (2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 185 of the Public Health Act 1875 shall apply to all byelaws so made :
- (3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any pipe meter cock ferrule valve soil-pan urinal watercloset bath tank cistern or other apparatus fitting means contrivance receptacle or appliance belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall

be repaid to the Corporation by the person on whose credit the water is supplied and may be recovered by them as water rates are recoverable. A.D. 1903. —

33. Any person duly authorised for the purpose by the Corporation and exhibiting his authority if required to do so may between the hours of nine in the forenoon and four in the afternoon enter any buildings or place supplied with water by the Corporation and inspect the meters pipes valves ferrules cocks cisterns soil-pans baths waterclosets taps fittings and other apparatus and receptacles for conveying delivering and receiving water and the mode of arrangement thereof and see whether they are in good repair and if such person at any such time be refused admittance into such premises for the purposes aforesaid or be prevented from making such examination the occupier of such premises shall for every such offence be liable to a penalty not exceeding five pounds. Corporation's officers may enter buildings to inspect fittings.

34. The Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may by agreement with any consumer supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates due to the Corporation. Provided that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes within the district. Supply of water for other than domestic purposes by measure.

35. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit. Power to sell or let meters.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Corporation to let for hire any water fittings to any person supplied by them with water.

36. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of some officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Corporation of connecting or disconnecting meters.

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Register of
meter to be
primâ facie
evidence.

37. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be primâ facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Corporation Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Injuring
meters &c.

38. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation or the punishment of the offender) for every such offence forfeit and pay to the Corporation a sum not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained and the existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be primâ facie evidence that such injury alteration prevention abstraction consumption or use as the case may be has been knowingly or wilfully caused by the consumer using such pipe meter instrument or fittings.

Entry on
premises to
cut off pipes
after notice
given.

39. In all cases in which any premises which shall have been supplied with water by the Corporation shall have become unoccupied for a space of seven days the Corporation their agents and workmen after giving seven days' previous notice to the owner by serving the notice on him or sending the same by post addressed to him at his usual place of abode or business or if the owner or his usual place of abode or business be not known to the Corporation after inquiry by affixing the same for seven days on some conspicuous part of such premises may enter into any such premises between the hours of nine of the clock in the forenoon and four of the clock in the afternoon for the purpose of cutting off any pipes

by which the water of the Corporation shall be conveyed to such premises and may remove any pipe meter fittings or apparatus the property of the Corporation repairing and making good all damage that may be done by reason of such removal. A.D. 1903.

40. Subject to the provisions of this Act the Corporation may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footpaths thoroughfares tramways and gas and water pipes. Detection of waste.

41. The Corporation may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply. Power to lay pipes in streets not dedicated to public use.

42. The Corporation when and as they think it expedient may put up and continue and from time to time remove or discontinue drinking places with proper conveniences for the gratuitous supply of water (but for drinking only) in such public places within the district as the Corporation think fit but not against any building except with the consent of the owner and occupier thereof. Public drinking fountains.

43. The Corporation may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply. Contracts for supplying water in bulk.

PART III.

RECREATION GROUNDS.

44. The agreement dated the twenty-fifth day of March one thousand nine hundred and two made between John Jope Eales Confirmation of scheduled agreement.

A.D. 1903. — Slade of the one part and the Corporation of the other part set out in the First Schedule to this Act is hereby confirmed and made binding on the said John Joce Eales Slade and the Corporation respectively and the Corporation are hereby authorised to purchase and the owners to sell by agreement the freehold of the said lands and to defray the cost of sale and purchase.

Corporation
may erect
reading
refreshment
rooms &c.

45. The Corporation may erect maintain furnish and equip and may remove pavilions conservatories refreshment assembly or reading rooms museums baths and other buildings and conveniences in the new recreation ground or in any other park or garden belonging to or held by them which may be required or convenient for such ground park or garden or the public resorting thereto and may charge for admission thereto.

Power to
Corporation
to let refresh-
ment rooms
&c.

46. The Corporation may let any refreshment rooms with their appurtenances belonging to them or under their control to any such person for such term not exceeding three years at any one time at such rent payable at such times under such covenants and on such conditions and with under and subject to such rights powers privileges and authorities relating thereto respectively as the Corporation may think fit.

Corporation
may let
assembly
rooms.

47. The Corporation may let any reading rooms or assembly rooms in the new recreation ground belonging to them for the purpose of particular meetings and entertainments.

Power to
provide
apparatus
for games.

48. The Corporation may provide apparatus for games and recreation for the use of the public frequenting the public parks gardens and recreation grounds and may charge for the use thereof and they may lease or grant for any term not exceeding three years the right of providing and charging for such apparatus upon such terms and conditions as they think proper and the Corporation may make regulations with respect to the use and payment for the use of such apparatus.

Power to
contribute
towards
band.

49. The Corporation may out of the district fund pay or contribute towards the payment of a band of music for the district provided that the amount of such payments or contributions do not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the borough for the purposes of the general district rate The Corporation may in any recreation ground or other public place enclose an area within which such band shall play and make regulations as to the time and place for the playing of the band the payments to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band.

50. The public parks gardens and recreation grounds within the district shall be deemed streets for the purposes of sections 24 25 and 29 of the Town Police Clauses Act 1847 and also for the purposes of so much of section 28 of that Act as relates to the following offences :—

A.D. 1903.
—
Recreation grounds to be deemed streets.

Every person who slaughters or dresses any cattle or any part thereof except in the case of cattle overdriven or which may have met with accident and which for the public safety or other reasonable cause ought to be slaughtered on the spot:

Every common prostitute or night walker loitering and importuning passengers for the purposes of prostitution :

Every person who wilfully and indecently exposes his person :

Every person who publicly offers for sale or distribution or exhibits to public view any profane indecent or obscene book paper print drawing painting or representation or sings any profane or obscene song or ballad or uses any profane or obscene language :

Every person who wantonly discharges any firearm or discharges any missile or makes any bonfire :

Every person who throws or lays any dirt litter or ashes or night-soil or any carrion fish offal or rubbish on any street.

51. The Corporation may set apart any portion of any park garden or recreation ground for the time being belonging to or held by them for cricket football archery tennis and other games and for the drill of volunteers yeomanry or cadets or any military or police force or for the purposes of the delivery of speeches or the holding of meetings of public or local interest but so that the same shall be open to the public when not in use for such games or drill or other purposes and the Corporation may make byelaws for regulating the use of the portions of the park garden or recreation ground so set apart.

Power to set apart portions of recreation grounds for games.

52. The Corporation may when the new recreation ground is held by them and when the whole or any part thereof is so used or set apart for any special purpose as in the last preceding section mentioned or for any of the purposes mentioned in the Public Health Acts Amendment Act 1890 close the same or such part thereof against the public and may demand and take or permit to be demanded and taken such reasonable sums as the Corporation decide for the exclusive occupation of the said new recreation ground or any such portion thereof or for the admission of persons vehicles goods and things into the said new recreation ground or portion thereof so used or set apart and may exclude therefrom all

Power to close new recreation ground.

A.D. 1903. persons vehicles goods and things unless payment be made of the reasonable sum demanded.

Power to provide and let chairs.

53. The Corporation may place or authorise any person or persons to place seats shelters or chairs in any street park recreation ground or pleasure ground or other public place for the use of the public and may if they think fit charge or allow such person or persons to charge a reasonable sum for the use of chairs and may make byelaws for regulating the use of seats shelters and chairs and for preventing injury or damage thereto.

Application of moneys received for admission.

54. The moneys (if any) received for the admission of any persons to the new recreation ground or any reading room assembly room or enclosure therein or for the letting of any refreshment rooms or other buildings or arising from charges made in pursuance of the sections of this Act whereof the marginal notes are "Power to provide apparatus for games" "Power to close new recreation ground" and "Power to provide and let chairs" shall be carried to the district fund.

Power to appoint officers.

55. The Corporation may appoint officers for securing the observance of this part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

Planting of trees and shrubs.

56. The Corporation may plant and take all necessary steps for the protection and preservation of ornamental trees and shrubs in or on any public park or pleasure ground or open space or street for the time being vested in or under the management of the Corporation.

PART IV.

FINANCE.

Power to borrow.

57.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes herein-after mentioned not exceeding the respective amounts following (that is to say) :—

- (A) For the purchase of lands and easements for and for the construction of the additional waterworks by this Act authorised the sum of twenty-two thousand pounds ;
- (B) For the purchase of lands and for the improvement planting and laying out thereof for the new recreation ground the sum of two thousand five hundred pounds ;
- (c) For paying the costs charges and expenses of this Act as herein-after provided the sum requisite for that purpose ;

and with the approval of the Local Government Board such further moneys as the Corporation may require in relation to the water undertaking of the Corporation including the extension of water mains within the limits of supply or for any of the purposes of this Act. A.D. 1903.
—

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenue of the water undertaking of the Corporation and the district fund and general district rate for the purposes (A) and (c) and the district fund and general district rate for the purposes (B).

58. The Corporation may raise all or any moneys which they are authorised to borrow under this Act either by mortgage debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another. Provided that the provisions of this Act with respect to the sinking fund to be provided for the repayment of moneys raised under this Act shall apply to any money raised under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act. Mode of
raising
money.

59. The powers of borrowing money for the purposes of waterworks by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act for such purposes shall not be reckoned. Certain regu-
lations of
Public
Health Act
as to borrow-
ing not to
apply.

60. The following sections of the Public Health Act 1875 shall extend and apply mutatis mutandis to mortgages granted under this Act (that is to say) :— Provisions
of Public
Health Act
as to mort-
gages to
apply.

Section 236 Form of mortgage.

Section 237 Register of mortgages.

Section 238 Transfer of mortgages.

Section 239 Receiver may be appointed in certain cases.

61. The Corporation shall not be bound to see to the execution of any trust whether expressed or implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register or books of the Corporation shall be a sufficient discharge to the Corporation in respect thereto notwithstanding any trusts to which such loan or security may be subject and Corporation
not to regard
trusts.

A.D. 1903.

whether or not the Corporation may have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Periods for
payment off
of money
borrowed.

62. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed period”) following (that is to say) :—

As to moneys borrowed for the purposes (A) and (B) mentioned in the section of this Act the marginal note whereof is “Power to borrow” within fifty-five years from the date or dates of borrowing the same ;

As to moneys borrowed for the purpose (c) in the said section mentioned within five years from the date or dates of borrowing the same ;

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding fifty years as that Board may think fit to sanction :

Provided that it shall not be obligatory on the Corporation to commence repayments by instalments or the payment into the sinking fund in respect of any sum borrowed for the purposes (A) of this Act as herein-before provided until after the expiration of six years from the date of the passing of this Act.

Mode of
paying off
of money
borrowed.

63. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest or by means of a sinking fund or partly by such instalments and partly by a sinking fund.

Regulations
as to sinking
fund.

64. If the Corporation determine to pay off by means of a sinking fund any moneys borrowed under the authority of this Act the following regulations shall be observed :—

The Corporation in every year shall appropriate and set apart out of the rate and revenue on the security of which such moneys shall have been borrowed such equal annual sums as will with the accumulations thereof by way of compound interest at not exceeding three per centum per annum be sufficient to pay off the whole of the principal moneys

borrowed on such security under this Act and repayable by a sinking fund within the prescribed period : A.D. 1903.

The rate of accumulation on which the amounts paid to the sinking fund are based is hereinafter referred to as "the prescribed rate" :

Provided as follows (that is to say) :—

(A) The yearly sum so to be appropriated and set apart shall be invested from time to time and accumulated in the way of compound interest by investing the same and the dividends interest and annual income thereof respectively in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments Provided that if in any year the income arising from the investments of the sinking fund does not equal the prescribed rate of accumulation any deficiency shall be made good out of the rate and revenue from which the annual payments to such fund are made and that if in any year such income exceeds the prescribed rate of accumulation any excess may be applied in reduction of the annual payments which would otherwise be required to be made to such fund :

(B) The Corporation may at any time apply the whole or any part of the sinking fund in or towards the repayment of the borrowed moneys for the repayment whereof the sinking fund was set aside in such order and manner as they deem proper Provided that in such case they pay into such sinking fund in each year afterwards and accumulate as herein-before prescribed until the whole of the borrowed moneys to which the sinking fund is applicable are discharged a sum equal to the interest produced by the sinking fund or part thereof so applied at the rate per centum per annum on which the annual payments to the sinking fund are based Provided also that whenever and so long as the value of the securities standing to the credit of the sinking fund taken at the market price of the day shall be equal to the amount of borrowed moneys then outstanding for the repayment of which it was set aside the Corporation may in lieu of investing the yearly income of such fund apply the same in payment of interest on moneys in respect of which the fund was set aside and may during such periods discontinue the payment to the sinking fund of the yearly sums required to be paid thereto.

A.D. 1903.

Saving for
existing
charges.

65. Nothing in this Act shall prejudicially affect any charge on the revenue and rates or the estates and property of the Corporation subsisting at the passing of this Act and every mortgagee or person for the time being entitled to the benefit of any such charge shall have the same priority of charge and all the like rights and remedies in respect of the revenue rate and property subject to his charge as if this Act had not passed and all such charges created before the passing of this Act shall during the subsistence thereof have priority over any mortgage or charge granted under this Act on the same revenue rate and property.

Power to re-
borrow.

66. If the Corporation pay off any part of the money borrowed by them under the powers of this Act otherwise than by means of instalments or appropriations or annual repayments or a sinking fund or out of the proceeds of the sale exchange or disposition of lands or out of fines or premiums on leases or other moneys received on capital account not being borrowed moneys they may from time to time re-borrow the same but all moneys so re-borrowed shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing shall have been made and any amounts from time to time re-borrowed shall be deemed to form the same loan as the moneys in lieu of which such re-borrowing shall have been made and the obligations of the Corporation with respect to the repayment of such moneys shall not be in any way affected by such re-borrowing.

Incorporating certain
sections of
Act of 1897.

67. The following provisions of the Act of 1897 shall apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (that is to say):—

Section 22 Protection of lenders from inquiry.

Section 25 Annual return to Local Government Board &c.

Application
of borrowed
moneys.

68. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are respectively authorised to be borrowed and to which capital is properly applicable.

Expenses of
execution of
Act.

69. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such as are to be paid out of borrowed money or are otherwise provided for) shall be paid out of the water revenue or district fund and general district rate.

Application
of water
revenue.

70. The Corporation shall apply all money from time to time received by them in respect of their water undertaking except money borrowed and money derived from the sale of surplus

lands or other moneys received on capital account as follows (that is to say) :— A.D. 1903.

Firstly In payment of the working and establishment expenses and cost of maintenance of their water undertaking ;

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of their water undertaking ;

Thirdly In providing the requisite instalments appropriations annual repayments or sinking funds on moneys borrowed by the Corporation for the purposes of their water undertaking ;

Fourthly In providing a reserve fund for their water undertaking if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to two thousand pounds which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Corporation from their water undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the sum of two thousand pounds and so from time to time as often as such reduction happens :

And any balance remaining in any year which may not be required for carrying on the water undertaking and paying the current expenses connected therewith and the annual proceeds of the reserve fund when such fund amounts to two thousand pounds shall be applied by the Corporation in reduction of the water rates and charges by the Act of 1856 and this Act authorised to be levied and made.

71. Any deficiency in the revenue or receipts of the Corporation on account of their water undertaking shall be made good out of the district fund and the general district rate to be made by the Corporation next after such deficiency has been ascertained shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund.

As to deficiency in receipts.

72.—(1) The Corporation may at any time make a scheme for prescribing one or more uniform periods within which all or any existing or future loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary

Scheme for fixing uniform period for repayment of loans.

A.D. 1908. the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagees under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

Separate accounts to be kept as to water.

73.—(1) The Corporation shall keep the accounts in respect of their water undertaking separate from all their other accounts distinguishing therein capital from revenue.

(2) The accounts of the receipts and expenditure of the Corporation in respect of the said undertaking shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882.

PART V.

MISCELLANEOUS.

Amendment of Local Acts.

74. The several sections of the Act of 1856 and of the Torquay Harbour and District Act 1886 set forth in the Second Schedule to this Act are hereby repealed.

Application of section 265 of Public Health Act 1875.

75. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were with the necessary modifications re-enacted herein.

Power to grant gratuities in certain cases.

76. The Corporation may if they think fit grant a gratuity of any sum not exceeding one year's salary or wages to any of their officers or servants who may be disabled or injured in their service or to the widow or family of any such officer or servant who may die in their service.

Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

77.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them by or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

A.D. 1903.
Inquiries by
Local Gov-
ernment
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

78. Where any notice or demand under this Act requires authentication by the Corporation the signature thereof by the clerk shall be a sufficient authentication and any notices and demands required or authorised to be served under this Act may be served in manner prescribed by section 267 of the Public Health Act 1875.

Authent-
ication and
service of
notices.

79. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Act 1875.

Compensa-
tion how to be
determined.

80. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Compensa-
tion may be
in land.

81. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction decision or order made by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

As to appeal.

82. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other

Powers of
Act cumula-
tive.

A.D. 1903. powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation and such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Saving for
indictments.

83. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that no person shall be punished for the same offence under this Act and also under any other Act.

Recovery of
penalties.

84. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Informations
by whom to
be laid.

85. Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act or by any byelaw made thereunder may be laid by an officer of the Corporation authorised in that behalf or by the clerk of the Corporation or any person aggrieved.

Penalties to
be paid over
to treasurer.

86. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Corporation be paid to the treasurer of the Corporation and be by him carried to the credit of the district fund.

Judges not
disqualified.

87. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Saving for
limits of
Teign Fish-
ery District.

88. Nothing in this Act shall be deemed to alter the limits of the River Teign or of the fishery district of the said river as defined by any certificate of a Secretary of State or of the Board of Trade under the provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1892 or any of them

89. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the obtaining of the resolution of owners and ratepayers aforesaid as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation primarily out of the water revenue or district fund and general district rate but ultimately out of moneys borrowed under the authority of this Act.

A.D. 1903.

Costs of Act.

A.D. 1903.

SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

THIS INDENTURE made the 25th day of March 1902 between JOHN JOPE EALES SLADE of Torquay in the county of Devon gentleman of the one part and the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF TORQUAY (herein-after called "the Corporation") of the other part.

WHEREAS by an indenture of lease dated the 22nd day of May 1893 and made between Richard Mallock of the one part and the Torquay Recreation Ground Company Limited of the other part all those meadows or closes of land situate in the parish of Cockington in the county of Devon and numbered respectively 297 and 298 in the Ordnance survey map for the said parish of Cockington and which premises therein-before described with the boundaries thereof delineated and shown on the plan on the reciting presents and are thereon coloured pink and were then late in the occupation of Jabez Ebenezer Bovey and were then in the occupation of the Company as tenants thereof Together with all buildings and erections erected or then being erected on the lands by the then reciting indenture demised and a moiety of all boundary walls and fences marked or designated on the said plan as being party walls and fences and the entirety of all other boundary walls and fences except where marked or designated upon the said plan as belonging or intended to belong to other owners and all other the actual and reputed appurtenances excepting and always reserving as therein excepted and reserved and were granted and demised unto the Company and their assigns from the 24th day of June 1888 for the term of ninety-nine years at the yearly rent for the first fourteen years of the said term of 52*l.* with an increase of the annual rental in certain events which have not occurred and subject to the covenants and conditions in the said indenture of lease contained and on the part of the lessee to be observed and performed :

And whereas after divers mesne assignments and other acts of the law and ultimately by an indenture of assignment dated the 22nd day of November 1900 and made between the Torquay Recreation Ground Company Limited and John Glanfield of Torquay aforesaid accountant liquidator of the Company of the one part and the said John Jope Eales Slade of the other part the hereditaments comprised in and demised by the said indenture of lease were assigned unto the said John Jope Eales Slade for the residue of the said term subject to the said rent covenants and conditions :

A.D. 1903.

And whereas the said John Jope Eales Slade hath agreed to sell to the Corporation the hereditaments comprised in the herein-before recited indenture of lease for the residue of the said term subject to the said rent covenants and conditions at the price of 500*l.* :

Now this indenture witnesseth that in consideration of the sum of 500*l.* to the said John Jope Eales Slade paid by the Corporation on or before the execution of these presents (the receipt whereof the said John Jope Eales Slade hereby acknowledges) the said John Jope Eales Slade as beneficial owner hereby assigns unto the Corporation the hereditaments comprised in and demised by the herein-before recited indenture of lease :

To hold the same unto the Corporation for all the residue now unexpired of the said term of ninety-nine years subject to the rent reserved by the said indenture of lease and the covenants and conditions therein contained and so far as the same are now applicable or enforceable and which henceforth on the part of the lessee ought to be observed and performed :

And the Corporation hereby covenant with the said John Jope Eales Slade that the Corporation their successors and assigns will during the residue of the said term pay the rent reserved by the said indenture of lease and observe and perform the covenants and conditions therein contained and so far as the same are now applicable or enforceable and which henceforth on the lessee's part ought to be observed and performed and will keep indemnified the said John Jope Eales Slade and his estate and effects from and against all claims and demands on account of the same.

In witness whereof the said John Jope Eales Slade has hereto set his hand and seal and the Corporation has caused its common seal to be hereto affixed the day and year first before written.

Signed sealed and delivered by }
the said John Jope Eales Slade }
in the presence of— }
T. C. LINDOP }
Solicitor }
Torquay. }

JOHN J. E. SLADE.

L.S.

Sealed with the seal of the }
Corporation in the presence }
of— }
J. F. ROCKHEY }
Mayor. }
FREDK. S. HEX }
Town Clerk. }

L.S.

A.D. 1903.

THE SECOND SCHEDULE.

Section 58 of the Torquay Waterworks Act 1856.
Section 116 of the Torquay Harbour and District Act 1886.

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